

Manual 38 — FERPA Controlled Implementation

****Controlled baseline:**** Family Educational Rights and Privacy Act, 20 U.S.C. § 1232g, and 34 CFR Part 99.

****Boundary:**** Department of Education guidance, state student-privacy law, contracts, grants, and organization practice remain distinct from FERPA statute/regulation.

****Release rule:**** reverify current e-CFR Part 99 and Department source materials at candidate freeze.

Chapter 01 — Purpose, scope, and controlled-source hierarchy

Establish the manual's FERPA scope, authoritative-source hierarchy, ownership, and change-control rules. Do not treat guidance, state law, or contract terms as FERPA regulation.

Maintain an applicability register, source register, owner matrix, change watch, and evidence index. Reassess when regulations, Department interpretations, institutional status, funding relationships, or operating models change.

Chapter 02 — FERPA applicability and covered education records

Determine whether the organization, student population, record, and activity fall within FERPA. Document exclusions, special populations, and records maintained outside the applicable education-record definition.

Maintain applicability decisions, record-classification rationale, system inventories, record custodians, and legal/privacy review evidence where facts are ambiguous.

Chapter 03 — Eligible student, parent, and authority transitions

Define when FERPA rights are exercised by parents and when rights transfer to an eligible student. Account for institutional level, age, attendance, representation, and legally valid authority.

Maintain authority-validation records, transition triggers, identity controls, representative documentation, and exceptions/escalations.

Chapter 04 — Education-record inventory and data-flow mapping

Inventory repositories, applications, paper files, communications, exports, integrations, backups, archives, and third-party platforms containing potential education records.

Maintain data-flow diagrams, system owners, record locations, processing purposes, data categories, access paths, transfer points, and retention dependencies.

Chapter 05 — Record classification and handling rules

Define operational handling classes for FERPA-covered records and distinguish them from directory information, sole-possession records, law-enforcement-unit records, employment records, treatment records, alumni records, and other categories as applicable.

Maintain classification rules, examples, owner decisions, exceptions, and change history.

Chapter 06 — Governance, accountability, and policy ownership

Assign accountable executive, privacy, records, security, registrar, legal, academic, IT, procurement, and operational roles. Establish policy approval, issue escalation, risk acceptance, and management review.

Maintain RACI matrices, policy approvals, control owners, exception logs, meeting evidence, and corrective-action tracking.

Chapter 07 — Notice of FERPA rights

Define how required FERPA-rights notices are prepared, approved, delivered, made accessible, and updated for applicable students and parents.

Maintain notice versions, publication dates, delivery evidence, accessibility review, language support decisions, and change records.

Chapter 08 — Consent governance

Establish a controlled process for obtaining and documenting FERPA consent when consent is required. Consent records should identify the records, purpose, recipients/recipient classes, authorization, date, and applicable revocation handling.

Maintain consent forms, electronic authorization evidence, identity validation, revocation logs, and exception rationale.

Chapter 09 — Disclosure-exception decision framework

Require documented analysis before relying on a non-consent disclosure exception. Prevent teams from treating exceptions as blanket permissions.

Maintain exception decision records, source citations, purpose, data scope, recipient, conditions, duration, owner approval, and reassessment triggers.

Chapter 10 — School-official and legitimate-educational-interest controls

Where the school-official exception is used, define criteria for school officials and legitimate educational interests, including contractor/vendor arrangements where applicable.

Maintain criteria, annual notice alignment, contracts, use restrictions, access approvals, oversight evidence, and termination controls.

Chapter 11 — Directory-information governance

Define the institution's directory-information designations, notice, opt-out process, suppression controls, timing, and downstream handling.

Maintain designation decisions, published notices, opt-out records, suppression flags, disclosure controls, exception handling, and periodic testing.

Chapter 12 — Access and inspection requests

Implement documented workflows for applicable parents or eligible students to inspect and review education records within required timeframes and under applicable conditions.

Maintain request logs, identity/authority validation, search records, responsive-record inventories, timing evidence, communications, and closure records.

Chapter 13 — Amendment and hearing workflows

Define processes for requests to amend records believed inaccurate, misleading, or otherwise within FERPA's amendment framework, including escalation and hearing procedures where applicable.

Maintain requests, determinations, evidence reviewed, hearing records, decisions, statements placed with records, notices, and timing metrics.

Chapter 14 — Identity, authentication, and representative access

Apply proportionate identity and authority verification before providing record access or accepting rights requests. Avoid collecting excessive verification data.

Maintain identity method, representative authority evidence, failed-verification handling, secure delivery method, and audit evidence.

Chapter 15 — Disclosure recordkeeping

Maintain required records of applicable disclosures and requests for disclosures, including parties, legitimate interests, and downstream conditions where required.

Define system-of-record, retention, linkage to the education record, exception cases, quality checks, and access controls.

Chapter 16 — Redisclosure restrictions and downstream controls

Where FERPA redisclosure restrictions apply, communicate conditions to recipients and maintain mechanisms to prevent or detect unauthorized onward disclosure.

Maintain disclosure terms, recipient acknowledgements, contracts, permitted-purpose evidence, incident escalation, and corrective actions.

Chapter 17 — Studies exception governance

For disclosures under the studies exception, require documented applicability, written agreements where required, purpose limitation, data minimization, security, destruction requirements, and oversight.

Maintain study approvals, agreements, data inventories, access lists, destruction evidence, findings, and closeout records.

Chapter 18 — Audit or evaluation exception governance

For audit/evaluation disclosures, document authorized representatives, program or legal authority, purpose, data scope, written terms where required, safeguards, and destruction requirements.

Maintain authorization, agreements, data-transfer records, oversight evidence, destruction records, and issue logs.

Chapter 19 — Financial-aid disclosures

Where the financial-aid exception is used, document the applicable purpose and ensure disclosures remain limited to determining eligibility, amount, conditions, or enforcement of aid terms as applicable.

Maintain purpose records, recipient authorization, data minimization, disclosure logs, and downstream-use controls.

Chapter 20 — Health or safety emergency decisions

Establish a documented emergency-decision process for disclosures made under the health-or-safety emergency exception, including articulable and significant threat analysis where applicable.

Maintain contemporaneous decision evidence, threat/risk rationale, recipients, data disclosed, timing, decision authority, and post-event review.

Chapter 21 — Judicial orders and lawfully issued subpoenas

Route court orders, subpoenas, and similar demands through controlled legal/privacy review. Determine applicable notice requirements and exceptions before disclosure.

Maintain demand intake, validation, legal analysis, notice determination, record scope, production evidence, confidentiality controls, and closure documentation.

Chapter 22 — Vendor and third-party lifecycle governance

Apply FERPA-specific due diligence to vendors that receive, maintain, process, or access education records. Assess purpose, access, control, redisclosure, security, subcontractors, retention, deletion, and incident terms.

Maintain vendor inventory, applicability assessment, contract checklist, access approvals, monitoring, findings, remediation, and termination evidence.

Chapter 23 — Cloud, SaaS, analytics, and digital learning platforms

Map FERPA responsibilities across cloud, SaaS, learning management, collaboration, analytics, AI, and digital-learning services. Document data flows, account roles, platform defaults, telemetry, exports, and secondary-use risks.

Maintain architecture diagrams, settings baselines, data-use assessments, integration approvals, monitoring, and exit plans.

Chapter 24 — Security safeguards and access governance

Implement risk-based administrative, technical, and physical safeguards appropriate to the education-record environment, recognizing that FERPA privacy requirements and security obligations from other sources may intersect but are not identical.

Maintain access matrices, authentication controls, encryption decisions, logging, vulnerability management, secure configuration, monitoring, and corrective actions.

Chapter 25 — Incident response and unauthorized disclosure

Integrate potential FERPA-related disclosure incidents into incident response, evidence preservation, legal/privacy analysis, contractual notification, state-law analysis, and Department-facing processes where applicable.

Maintain incident records, affected-record analysis, disclosure assessment, decisions, communications, remediation, lessons learned, and change actions.

Chapter 26 — State student-privacy and sector overlays

Maintain a separate overlay process for state student-data laws, K-12 requirements, higher-education rules, professional/licensure requirements, grant terms, and other applicable regimes.

Do not represent overlay duties as FERPA duties. Maintain applicability matrices, source citations, conflicts, owners, and implementation decisions.

Chapter 27 — Retention, deletion, archival, and defensible disposal

Define record retention and disposal using applicable legal, records, litigation-hold, accreditation, contractual, business, and institutional requirements. FERPA should not be presented as a universal retention schedule.

Maintain retention schedules, legal holds, deletion approvals, archive controls, vendor deletion evidence, exceptions, and disposal records.

Chapter 28 — Training and role competence

Provide role-based training for personnel who handle education records, rights requests, disclosures, vendor oversight, security, records management, and emergency decisions.

Maintain curricula, attendance/completion, role mapping, competency checks, remediation, and periodic refresh evidence.

Chapter 29 — Assurance, testing, and audit evidence

Test FERPA controls using risk-based samples of notices, consents, disclosures, exception decisions, requests, vendor records, access controls, incident handling, and deletion evidence.

Maintain test plans, samples, results, findings, root causes, corrective actions, retests, and management reporting.

Chapter 30 — Metrics, management review, and continual improvement

Define meaningful indicators such as request timeliness, unresolved exceptions, vendor findings, disclosure-record quality, access-review exceptions, training completion, incidents, remediation aging, and change-watch status.

Management review should document decisions, resources, risk acceptance, corrective actions, and improvement priorities.

Chapter 31 — Exact-hash localization, provenance, and release evidence

Freeze controlled EN/es-419/pt-BR publication candidates before substantive review. Bind DOCX/PDF identities to SHA-256 hashes and preserve accessibility, rendered-page, localization, workflow-security, and release-QA evidence.

Any material change after freeze requires explicit supersession, regeneration, re-hashing, and re-review of affected gates.

Chapter 32 — Implementation roadmap and release-time reverification

Implement in phases: applicability and inventory; governance and notices; rights and consent; disclosure exceptions; vendors/platforms; security/incident controls; assurance; metrics; and continual improvement.

Immediately before publication, reverify current 20 U.S.C. § 1232g, 34 CFR Part 99, Department of Education FERPA source materials, and any expressly claimed state/sector overlays. Publication remains sequential after Manual 37 and requires all objective release gates to be green.